

25STCV09320 25STCV09320

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Case Number: 25STCV09320 Hearing Date: July 20, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Defendant Ford

Motor Company's Motion for Summary Adjudication

Defendant Ford Motor Company's Motion for Summary

Adjudication is granted.

BACKGROUND

Plaintiff John T. Tuttle (Plaintiff) filed this action against Defendants Ford Motor Company (Ford) and Santa Monica Ford Lincoln after purchasing a new 2021 Ford Explorer (the Subject Vehicle), which he alleges subsequently manifested defects.

The Complaint alleges six causes of action: (1) Violation of Civil Code Section 1793.2, Subdivision (D); (2) Violation of Civil Code Section 1793.2, Subdivision (B); (3) Violation of Civil Code Section 1793.2, Subdivision (A)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement-Concealment.

The first four causes of action are brought against Ford under the Song-Beverly Consumer Warranty Act, the fifth is brought against Santa Monica Ford Lincoln, and the sixth is brought against Ford.

The sixth cause of action alleges that Plaintiff entered into a warranty contract with Ford regarding the Subject Vehicle, and that before the May 20, 2021 sale Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects causing hesitation or delayed acceleration, harsh or hard shifting, and jerking,

shuddering, or juddering (the Transmission Defect), but failed to disclose the Transmission Defect to Plaintiff at the time of sale.

Ford filed a Motion for Summary Adjudication of the sixth cause of action. Plaintiff filed a late Opposition, supported by a declaration of counsel under Code of Civil Procedure section 473, subdivision (b), a Request for Judicial Notice, and a responsive separate statement. Ford filed an objection to the untimely Opposition. At the July 1, 2026 hearing, the Court continued the matter and permitted Ford to file a reply. (Minute Order, July 1, 2026.)

LEGAL STANDARD

A party may move for summary adjudication as to one or more causes of action within an action if the party contends that the cause of action has no merit. (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action. (Ibid.) A defendant moving for summary adjudication bears the initial burden to show that one or more elements of the cause of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The defendant may carry that burden by presenting evidence that negates an element of the plaintiff's claim or by presenting evidence that the plaintiff does not possess, and cannot reasonably obtain, evidence needed to establish an element. (Id. at pp. 853-855.) The defendant may make the latter showing through the plaintiff's factually devoid discovery responses, from which an absence of evidence can be inferred. (Id. at pp. 854-855.) If the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not rely on the allegations of the pleadings, but must set forth the specific facts showing that a triable issue of material fact exists. (Ibid.) The Court considers all of the evidence set forth in the papers, except evidence to which the Court has sustained an objection, and all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing the motion. (Code Civ. Proc., § 437c, subd. (c); *Aguilar*, supra, 25 Cal.4th at p. 843.)

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of 19 exhibits: internal

Ford documents and deposition excerpts that Plaintiff asserts were unsealed in Avila v. Ford Motor Co. (N.D.Cal., No. 22-cv-00542-PCP) (Exhibits 1 through 17), approximately 25 Ford Technical Service Bulletins (Exhibit 18), and Ford's Safety Recall 22S27 (Exhibit 19). (RJN at pp. 1-3.) Ford opposes the request.

Plaintiff's request for judicial notice fails for lack of proper authentication. Where, as here, the material is contained in the file of a court other than the one in which the matter is to be heard, the moving party must either obtain the file for the hearing date or file with the moving papers a certified copy of the portion of the record for which judicial notice is requested. (Super. Ct. L.A. County, Local Rule 3.8, subd. (b).) Exhibits 1-19 are purportedly records unsealed in a Northern District of California action, and Plaintiff has not submitted certified copies of any of them, nor has Plaintiff submitted a declaration identifying the source of the exhibits or attesting that they are true and correct copies of what they purport to be. The unsworn assertion that the exhibits were unsealed and are part of the public record does not satisfy this requirement; it establishes, at most, that the underlying documents may be proper subjects of judicial notice, not that the copies submitted with this request are what Plaintiff represents them to be. Accordingly, the request for judicial notice is denied.

EVIDENTIARY OBJECTIONS

Ford objects to each of the 19 additional facts in Plaintiff's responsive separate statement and their supporting evidence on grounds including hearsay, lack of foundation and authentication, and relevance. Evidence offered in opposition to a motion for summary adjudication must be admissible. (Code Civ. Proc., § 437c, subd. (d); Perry v. Bakewell Hawthorne, LLC (2017) 2 Cal.5th 536, 543.) The objections are sustained. Each rests entirely on exhibits submitted through the Request for Judicial Notice that no declarant with personal knowledge authenticates. (Evid. Code, § 1401; Code Civ. Proc., § 437c, subd. (d).)

The objections Plaintiff states within Plaintiff's responsive separate statement are not presented in the format required by California Rules of Court, rule 3.1354, and are overruled.

ANALYSIS

I. Untimely Opposition

An opposition to a motion for summary adjudication must be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. (Code Civ. Proc., § 437c, subd. (b)(2).) “A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.” (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765.)

Plaintiff's Opposition was due June 11, 2026 and was filed June 14, 2026. (Objection at p. 2:12-17.) Plaintiff's counsel attributes the late filing to the press of business and states that the lapse is counsel's alone. (Yu Decl., ¶ 3.) The Court exercises its discretion to consider the Opposition. Any prejudice to Ford was cured when the Court continued the hearing and permitted Ford to file a reply, which Ford filed. (Minute Order, July 1, 2026.)

II. Knowledge of a Defect at the Time of Sale

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.) “The very existence of a warranty presupposes that some defects may occur.” (Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, 345.) To prevail on a concealment claim against a vehicle manufacturer, a plaintiff needs evidence that, prior to the purchase of the vehicle, the manufacturer was aware of a defect that it was either unwilling or unable to fix. (Ibid.)

Ford presents evidence that Plaintiff purchased the Subject Vehicle on May 20, 2021 (Alarcón Decl., ¶ 3, Ex. 2; ¶ 4, Ex. 3 at 26:4-9); that none of the Subject Vehicle's six repair orders reflects a transmission-related complaint or repair (Alarcón Decl., ¶¶ 5-10, Exs. 4-9; ¶ 4, Ex. 3 at 38:24-64:23); that Plaintiff testified he “never really had any issues with transmission” (Alarcón Decl., ¶ 4, Ex. 3 at 73:4-13); and that Plaintiff

testified “it’s not really that they had done something wrong,” but rather that Ford “had basically sold a product that didn’t work.” (Alarcón Decl., ¶ 4, Ex. 3 at 73:14-74:1.) This evidence supports the inference that the alleged Transmission Defect never manifested in the Subject Vehicle and that Plaintiff does not possess, and cannot reasonably obtain, evidence that Ford knew of a defect in the Subject Vehicle at the time of sale that it was unwilling or unable to fix. Ford has carried its initial burden. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at pp. 854-855.)

The burden shifts to Plaintiff to present admissible evidence raising a triable issue as to Ford’s knowledge at the time of sale. Plaintiff points to the exhibits attached to Plaintiff’s Request for Judicial Notice as showing that Ford knew of the Transmission Defect as early as 2012. (Opp. at pp. 2-6.) For the reasons stated above, the Request for Judicial Notice is denied and Ford’s objections to the responsive separate statement are sustained, so the Court does not consider that evidence. (Code Civ. Proc., § 437c, subd. (c).) The assertions in Plaintiff’s memorandum and separate statement are not themselves evidence. Because Plaintiff fails to provide any admissible evidence of Ford’s pre-sale knowledge, he likewise fails to establish a triable issue of material fact on that point. Accordingly, the Motion is granted.

CONCLUSION

Defendant Ford Motor Company’s Motion for Summary Adjudication of the sixth cause of action for fraudulent inducement-concealment is granted.